

Parliament assembled, and by the authority of the same, as follows :—

Grants for
public loans.

1.—(1) There may be issued by the National Debt Commissioners for the purpose of local loans by the Public Works Loan Commissioners any sum or sums not exceeding in the whole the sum of twenty-five million pounds.

50 & 51 Vict.
c. 16.

(2) The sums so issued shall be issued during a period ending on the day on which a further Act granting money for the purposes of those loans comes into operation and in accordance with the provisions of the National Debt and Local Loans Act, 1887.

Short title.

2. This Act may be cited as the Public Works Loans (No. 2) Act, 1927.

CHAPTER 29.

An Act to restrict blind booking and advance booking of cinematograph films, and to secure the renting and exhibition of a certain proportion of British films, and for purposes connected therewith. [22nd December 1927.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

PART I.

RESTRICTIONS ON BLIND BOOKING AND ADVANCE BOOKING OF FILMS.

Restrictions
on blind
booking of
films.

1.—(1) As from the commencement of this Act, no agreement shall be entered into to rent, or imposing an obligation when called on to rent, for public exhibition in Great Britain any film to which this Act applies unless every such film to which the agreement relates has been registered under this Act or a valid application for the registration thereof has been made :

Provided that—

(a) this provision shall not apply to a film which has been exhibited to exhibitors or to the

public in Great Britain before the commencement of this Act; and

- (b) in the case of a serial film or a series of films within the meaning of this Act, it shall be sufficient if any three parts thereof have been registered or a valid application for the registration of three parts thereof has been made.

(2) In the case of a film which has not been previously exhibited to exhibitors or to the public in Great Britain, this section shall not operate so as to prohibit the making prior to the registration or application for registration thereof of an agreement for the exhibition of the film in one theatre only on a number of consecutive days.

2.—(1) As from the commencement of this Act, no agreement shall be entered into for the exhibition to the public in Great Britain at a date later than the expiration of the authorised period from the date of the agreement of any film to which this Act applies: Restrictions on advance booking.

Provided that, in the case of a serial film or a series of films within the meaning of this Act, the authorised period shall apply only in respect of the date of exhibition of the first three parts.

(2) For the purposes of this section, the authorised period shall—

- (a) in the case of an agreement made before the first day of October, nineteen hundred and twenty-eight, be twelve months;
- (b) in the case of an agreement made on or after the first day of October, nineteen hundred and twenty-eight, and before the first day of October, nineteen hundred and thirty, be nine months;
- (c) in the case of an agreement made on or after the first day of October, nineteen hundred and thirty, be six months.

3. If any person enters into an agreement in contravention of this Part of this Act, or if any person exhibits to the public in Great Britain a film the right to exhibit which has been acquired by him under any such agreement, he shall be guilty of an offence and liable on summary conviction to a fine not exceeding fifty pounds, and any agreement in contravention of this Part of this Act, wherever made, shall be invalid. Penalty on contraventions.

Provisions
as to exist-
ing agree-
ments.

4. Any agreement entered into after the twenty-fifth day of September, nineteen hundred and twenty-six, and before the commencement of this Act which, if entered into after the commencement of this Act would be an invalid agreement under the foregoing provisions of this Part of this Act, shall, if and so far as it affects any films to which this Act applies to be delivered for public exhibition in Great Britain after the thirty-first day of December, nineteen hundred and twenty-eight, cease to have effect on that day.

PART II.

REGISTRATION OF FILMS.

Prohibition
against
exhibition of
unregistered
films.

5.—(1) On and after the first day of April, nineteen hundred and twenty-eight, no film to which this Act applies, or, in the case of a serial film or a series of films, no part thereof, shall be exhibited to the public in Great Britain unless the film or the part thereof exhibited has been registered in accordance with this Part of this Act :

Provided that—

(a) a film in respect of which a provisional application for registration has been made may, before registration, be exhibited at a series of public exhibitions held at one theatre only on consecutive days;

(b) the prohibition contained in this section shall not apply to a film which has been exhibited in Great Britain before the commencement of this Act.

(2) If any person exhibits a film, or, in the case of a serial film or a series of films, any part thereof, in contravention of this section, he shall be guilty of an offence and liable on summary conviction to a fine not exceeding twenty pounds for each day on which the film or part has been so exhibited.

Registration
of films.

6.—(1) The Board of Trade shall keep a register of films to which this Act applies, and shall enter therein such particulars as may be prescribed; and the register shall specify whether the film is registered as a British film or a foreign film :

Provided that a film which has been exhibited to exhibitors or to the public in Great Britain before the first day of October, nineteen hundred and twenty-seven, shall not be registered unless the Board of Trade, after consultation with the advisory committee hereinafter mentioned, determine that the registration of the film shall be allowed.

(2) The Board of Trade shall publish weekly in the Board of Trade Journal lists of the films registered in accordance with the provisions of this Act.

(3) An application to register a film shall be made by or on behalf of the maker or renter of the film, and shall be accompanied by the prescribed fee, and by such information as the Board of Trade may require, and in particular, where the application is for the registration of the film as a British film, such information as may be necessary to determine whether the film is a British film.

(4) An application shall not be a valid application unless the film has been trade shown, nor if more than fourteen days have elapsed since it was trade shown :

Provided that—

(a) a provisional application may be made before a film has been trade shown, and in such case on the film being trade shown within six weeks after the lodging of the provisional application, the provisional application shall as from the date of the trade show become a valid application;

(b) an application made more than fourteen days after the film was trade shown may be accepted by the Board as a valid application if satisfied that the delay was due to special circumstances and was not intentional.

(5) On the registration of a film, the Board shall issue to the applicant a certificate of registration, and the certificate shall state the length of the film and whether the film is registered as a British film or a foreign film.

7.—(1) The register of films kept under this Act shall at all reasonable times be open to inspection by any person on payment of the prescribed fee, and any person inspecting the register may make copies or extracts from the register.

Inspection
of register,
&c.

(2) Any person may on payment of the prescribed fee require to be furnished with a copy of any entry in the register certified to be a true copy by an officer of the Board of Trade appointed to keep the register.

(3) The registration of a film may be proved by the production of a copy of the Board of Trade Journal containing a notification of the registration of the film, or of the certificate of registration, or of a certified copy of the entry in the register relating to the film; and a certificate purporting to be a certificate of registration or a copy of any entry purporting to be certified as a true copy by such officer as aforesaid shall in all legal proceedings be evidence of the matters stated therein without proof of the signature or authority of the person signing it.

Correction
of register.

8.—(1) If the Board of Trade at any time have reason to believe that the length of a film has been or has become incorrectly registered, or that a film has been incorrectly registered as a British film, they may call for such evidence as they think fit as to the correctness or otherwise of the registration, and if satisfied that the film has been or is incorrectly registered, they shall correct the register and issue an amended certificate of registration.

(2) On the issue of an amended certificate, the former certificate shall cease to have effect, except that the Board of Trade may in any particular case allow the film to be counted for the purposes of the provisions of Part III. of this Act relating to renters' and exhibitors' quotas as being of the length originally registered, or as a British film, as the case may be.

Power to
require
reference to
High Court.

9.—(1) If any person is aggrieved by the refusal of the Board of Trade to register a film, or to register a film as a British film, or by a decision of the Board to correct the registration of a film, the matter shall, subject to rules of court, be referred by the Board of Trade to the High Court for determination, and the decision of the Court on any such reference shall be final and no appeal shall lie therefrom to any other court.

(2) Where the person aggrieved is a person whose principal place of business is in Scotland, this section shall apply as if the reference to the High Court were a reference to the Court of Session.

10. If the length of a film is altered to the extent of more than ten per cent. thereof after an application for registration thereof has been lodged or after the registration thereof, it shall be the duty of the maker of the film or, if at the time of the alteration the film has been acquired by a renter, the renter, to send to the Board of Trade notice of the alteration, and if he fails to do so, he shall be guilty of an offence, and shall be liable on summary conviction to a fine not exceeding twenty pounds.

Provisions
as to altera-
tions of the
length of
films.

11.—(1) On every copy of a registered film there shall be marked in the prescribed manner :—

Marking of
registered
films.

- (a) the registered number of the film ;
- (b) the person in whose name the film is registered ;
- (c) the registered length of the film ;
- (d) the words “ registered as a British film ” or “ registered as a foreign film,” as the case may be :

Provided that it shall not be necessary to comply with the above requirements in respect of any film if, whenever a copy thereof is issued to an exhibitor for exhibition to the public in Great Britain, an invoice containing such particulars as aforesaid is sent by the renter to the exhibitor.

(2) If after copies of a film have been so marked or invoices have been so sent, the registration of the film is corrected in manner provided by this Part of this Act, then—

- (a) in the former case, a corresponding alteration shall be made in all copies of the film ; and
- (b) in the latter case, new invoices containing the correct particulars shall be sent.

(3) If any person fails to comply with any of the provisions of this section, or issues a copy of any registered film incorrectly marked or any invoice containing incorrect particulars, he shall be guilty of an offence, and shall be liable on summary conviction to a fine not exceeding twenty pounds in respect of each copy.

Special provisions as to serial films, &c.

12. In the case of a serial film or a series of films, the provisions of this Part of this Act shall apply subject to the following modifications :—

- (i) The separate parts of the film or series of films shall be separately registered and each part shall be treated as a separate film :
- (ii) Where three parts of the film or series have been trade shown, any other part may be registered without having been trade shown and notwithstanding that more than fourteen days have elapsed since the said three parts were trade shown :

Provided that, if the Board are at any time of opinion that it is no longer desirable to dispense with a trade show in the case of the remaining parts of serial films and series of films, they may make an order to that effect, and on the making of the order this paragraph shall cease to apply.

PART III.

PROVISIONS FOR SECURING QUOTA OF BRITISH FILMS.

Renters' Quota.

Provisions as to renters' quota.

13.—(1) In the year commencing on the first day of April, nineteen hundred and twenty-eight, and ending on the thirty-first day of March, nineteen hundred and twenty-nine, and in each of the nine succeeding years, any person engaged in the business of renting registered films to exhibitors for the purpose of public exhibition in Great Britain (hereinafter referred to as a renter) shall acquire for the purposes of such renting a total length of registered British films representing at least such proportion of the total length of all registered films so acquired by him in the year as is specified as respects the year in Part I. of the First Schedule to this Act, and such proportion is hereinafter referred to as the renters' quota, and if the films so acquired include both long films (that is to say, films the registered length of which is three thousand feet or upwards) and short films (that is to say, films the registered length of which is less than three thousand feet), the requirements of this section must be satisfied as respects the long films so acquired as well as respects all films so acquired.

(2) If in any such year a renter fails to comply with the requirements of this Part of this Act as to the renters' quota, he shall be guilty of an offence, unless such a certificate as is hereinafter mentioned has been issued by the Board of Trade, or unless he proves to the satisfaction of the court that the reasons for non-compliance were reasons beyond his control.

(3) In this section, "registered British film" means a British film which either at the time of its acquisition by the renter is, or later within the same year becomes, a registered British film; and "registered film" means a film which either at the date of its acquisition by the renter is, or later within the same year becomes, a registered film.

(4) If a film is not registered at the time of its acquisition by a renter, and is registered after the expiration of the year in which it is so acquired, the film shall, for the purposes of this Part of this Act, be treated as if it had been acquired by the renter in the year in which it is registered.

(5) Where a renter has in any such year acquired any registered films and subsequently in the same year his business as a renter, by assignment or will, or on intestacy, or by operation of law, becomes vested in some other licensed renter, that other renter and not the first-mentioned renter shall for the purposes of the provisions of this Part of this Act as to the renters' quota be deemed to have acquired the films.

14. Any number of renters, none of whom, or of whom not more than one, during any such year acquires for the purpose of renting to exhibitors more than six long registered films as hereinbefore defined, may, if the Board of Trade consent, combine for the purposes of the provisions of this Part of this Act relating to the renters' quota the total length of registered British films so acquired by them in that year and the total length of all registered films so acquired by them in that year, and in such case if the total length of such registered British films bears the proper proportion to the total length of all such registered films, and the total length of such long registered British films bears the proper proportion to the total length of all such long registered films, each renter shall as respects that year be deemed

Power of
small
renters to
combine.

to have satisfied the provisions of this Part of this Act as to the renters' quota.

Provisions applicable where same film rented by different persons for different areas.

15. Any renter, whose business is limited to the renting of films for exhibition exclusively in a limited geographical area within Great Britain, may for the purposes of his renters' quota count any registered British film for the renting of which in that area he has acquired the exclusive right and which has not been previously exhibited to the public in that area, notwithstanding that the film has been already counted for the purposes of the renters' quota by some other renter, being a renter who has acquired the exclusive right to rent it for exhibition in some other limited area, or in Great Britain exclusive of the first-mentioned area.

Prohibition of counting film more than once for quota purposes.

16. No British film shall be counted more than once for the purposes of the provisions of this Part of this Act with respect to the renters' quota, nor, save as hereinbefore expressly provided, shall any British film be counted for the purposes aforesaid by more than one renter:

Provided that, if a renter in any year acquires any old British films and also acquires old foreign films, he shall be entitled to count the old British films for the purposes of the renters' quota—

- (a) if the only films acquired by him during the year are old films; or
- (b) if he has acquired films other than old films during the year and the requirements of this Part of this Act as to renters' quota would have been satisfied as respects those other films had they been the only films acquired by him during the year.

For the purposes of this proviso, the expression "old," in relation to a film, means acquired by a renter not less than one year after the close of the year in which it was acquired by another renter.

Prohibition against carrying on business of renter unless licensed.

17.—(1) On and after the first day of April, nineteen hundred and twenty-eight, and until the thirty-first day of March, nineteen hundred and thirty-eight, no person shall carry on the business of renting registered films for exhibition to the public in Great Britain unless he holds a licence for the purpose from the Board of Trade:

Provided that, where an application for such a licence has been made, it shall be lawful for the applicant to carry on such business as aforesaid pending the determination of the application.

(2) No film to which this Act applies shall, during the period aforesaid, be exhibited to the public in Great Britain unless—

- (a) the film has been acquired by the exhibitor from a person entitled to carry on such business as aforesaid; or
- (b) the exhibitor is himself a person who is entitled to carry on such business as aforesaid and has acquired the film for the purpose of renting it for public exhibition in Great Britain.

(3) If any person carries on such business as aforesaid or exhibits any film in contravention of this section, he shall be guilty of an offence and liable on summary conviction to a fine not exceeding twenty pounds for each day during which he so carries on the business or exhibits the film, as the case may be.

18.—(1) Every person who at any time during any year ending on the thirty-first day of March was a licensed renter shall furnish to the Board of Trade before the first day of the following May, or such later date as in any particular case the Board of Trade may allow, a return giving such particulars as may be prescribed with respect to the registered films acquired by him during the year in question, in order to enable the Board of Trade to ascertain whether the requirements of this Part of this Act with respect to the renters' quota have been satisfied by him during the year to which the return relates :

Returns and
records.

Provided that, if any licensed renter in the course of any such year ceases to carry on business as a renter, the return shall be made within one month from the time when he so ceases to carry on the business, unless previously and in the same year his business as a renter has become vested in some other licensed renter.

(2) Every person required to make a return under the last foregoing subsection shall, before the first day of May in the year following the year in which the return was made, furnish to the Board of Trade a supplementary return relative to the year to which the

original return related, giving such particulars as could not have been given in the original return owing to bookings for exhibitions not having been completed.

(3) Any such return as aforesaid may be used for the purpose of ascertaining whether the films entered in the return as having been acquired by the renter making the return were in fact acquired by him for the purpose of renting them to exhibitors for exhibition to the public in Great Britain.

(4) Every licensed renter shall also keep a book and shall as soon as practicable record therein the title, registered number, and registered length of every film acquired by him (distinguishing between British and foreign films), the theatres at which each film has been booked for exhibition and the dates for which such bookings are made, and shall when so required produce the book for inspection by any person authorised in that behalf by the Board of Trade.

Exhibitors' Quota.

Provisions
as to exhi-
bitors'
quota.

19.—(1) In the year commencing on the first day of October, nineteen hundred and twenty-eight, and ending on the thirtieth day of September, nineteen hundred and twenty-nine, and in each of the nine succeeding years, every person who carries on the business of exhibiting registered films to the public in Great Britain shall exhibit at each theatre during the period in any year during which he so exhibits films at that theatre at least such proportion of registered British films as is mentioned with respect to the year in question in Part II. of the First Schedule to this Act, and such proportion is hereinafter referred to as the exhibitors' quota, and, if the films so exhibited include both long films and short films as hereinbefore defined, the requirements of this section must be satisfied as respects the long films so exhibited as well as respects all the films so exhibited.

(2) The proportion of British registered films exhibited during such period as aforesaid at any theatre shall be ascertained by comparing—

(a) the aggregate arrived at by adding together the products of the total number of feet of each registered British film which has been exhibited

during the normal hours in the ordinary programme multiplied by the number of times the film has been so exhibited during the said period; and

- (b) the aggregate arrived at by adding together the products of the total number of feet of each registered film which has been so exhibited multiplied by the number of times the film has been so exhibited during the said period.

(3) If in any year an exhibitor fails to comply with the requirements of this Part of this Act in respect of any theatre, he shall be guilty of an offence, unless such a certificate as is hereinafter mentioned has been issued by the Board of Trade, or unless he proves to the satisfaction of the court that the reasons for non-compliance were reasons beyond his control.

20.—(1) On and after the first day of October, nineteen hundred and twenty-eight, and until the thirtieth day of September, nineteen hundred and thirty-eight, no person shall carry on the business of exhibiting registered films to the public in any theatre unless he holds a licence for the purpose in respect of that theatre from the Board of Trade :

Prohibition
against
carrying on
business of
exhibitor
unless
licensed.

Provided that, where an application for such a licence has been made, it shall be lawful for the applicant to carry on the business in any theatre to which the application relates pending the determination of the application.

(2) If any person carries on such business as aforesaid in contravention of this section, he shall be guilty of an offence, and shall be liable on summary conviction to a fine not exceeding ten pounds for each day on which he so carries on the business.

21.—(1) Every person who at any time during any year ending on the thirtieth day of September was a licensed exhibitor shall furnish to the Board of Trade before the first day of the following November a return giving such particulars as may be prescribed with respect to the registered films exhibited by him in each theatre during the year in question, and the dates and number of times on which they were exhibited, in order to enable the Board of Trade to ascertain whether the requirements of this Part of this Act with respect to the exhibitors'

Returns and
records.

quota have been satisfied by him in respect of the theatre during the year to which the return relates :

Provided that, if any licensed exhibitor in the course of any such year ceases to exhibit at any theatre, the return with respect to that theatre shall be made within one month from the time when he so ceases to exhibit thereat.

(2) Every licensed exhibitor shall also keep in respect of each theatre at which he exhibits films a book, and shall as soon as practicable record therein the title, registered number and registered length of each film exhibited by him at the theatre to the public (distinguishing between British and foreign registered films), the dates of all exhibitions of each film and the number of times of exhibition of each film each day during the normal hours in the ordinary programme, and every such book shall be open to inspection by any person authorised in that behalf by the Board of Trade.

The book relating to any theatre shall be kept at that theatre so long as the exhibitor continues to exhibit thereat.

Provisions
as to
itinerant
exhibitors.

22. In the case of any exhibitor who in any such year as aforesaid does not exhibit in any one theatre on more than six days nor in more than one theatre at the same time, the provisions of this Part of this Act shall apply subject to the following modifications :—

- £. (a) It shall not be necessary for any such exhibitor to comply with the provisions as to the exhibitors' quota as respects any particular theatre, if, had all the exhibitions given by him in the year been exhibitions at the same theatre, those provisions would have been complied with ;
- (b) It shall not be necessary for the exhibitor to make a return to the Board of Trade after ceasing to exhibit at any particular theatre, or to keep a separate record book in respect of each theatre at which he exhibits ;
- (c) A licence to carry on the business of exhibiting films to the public shall suffice, and it shall not be necessary for the exhibitor to obtain a licence in respect of each theatre at which he exhibits.

General.

23.—(1) The Board of Trade shall examine every return furnished to them under this Part of this Act, and for the purpose of such examination may call on the renter or exhibitor making the return for such information and explanations as they may think necessary, and may authorise any person appointed by them for the purpose to examine the record books kept by the renter or exhibitor.

Examina-
tion of
returns.

(2) Where on submission by the renter or exhibitor or otherwise it appears to the Board of Trade after consultation with the advisory committee hereinafter mentioned in any case where the Board of Trade contemplate the refusal of a certificate that though the requirements of this Part of this Act with respect to the renters' quota or the exhibitors' quota, as the case may be, have not been complied with, the reasons for non-compliance were reasons beyond the control of the renter or exhibitor, they shall issue a certificate to that effect.

24.—(1) Any offence of failing to comply with the provisions of this Part of this Act as to the renters' quota or exhibitors' quota may be prosecuted summarily or on indictment, and—

Proceedings
for failure
to comply
with pro-
visions as to
quotas.

(a) if the accused is proceeded against summarily, he shall on conviction if a renter be liable to a fine not exceeding one hundred pounds, and if an exhibitor to a fine not exceeding fifty pounds; and

(b) if the accused is proceeded against on indictment, he shall on conviction be liable to a fine not exceeding five hundred pounds.

(2) In the case of a conviction on indictment, the court, in addition to imposing any such fine as aforesaid,—

(a) where the offender is a renter, may, if of opinion that the offence was deliberate, and if the offence is a third offence, order that his licence be revoked, and may order that no licence shall be issued to him, or to any person with whom he is financially associated, or to any person who acquires his business, or to any person who took part in the management of his business

and was knowingly a party to the offence, for such period in each case as may be specified in the order :

Provided that, where any such order is made, the order shall not operate so as to prevent the renter carrying out for a period not exceeding six months any obligations under any contract entered into by him before the institution of the proceedings;

- (b) where the offender is an exhibitor, may, if of opinion that the offence was deliberate, and if the offence is a third offence, order his licence under this Act in respect of the theatre with respect to which the offence was committed to be revoked, and may order that for such period in each case as may be specified in the order no licence in respect of that theatre shall be issued to him or to any person with whom he is financially associated, or to any person who took part in the management of his business and was knowingly a party to the offence, or to any person whose licence in respect of any theatre has been revoked during the twelve months previous to the date of the conviction.

(3) Summary proceedings for the offence of not complying with the requirements of this Part of this Act as to the renters' quota or as to the exhibitors' quota may, notwithstanding anything in the Summary Jurisdiction Acts, be instituted at any time within two years after the commission of the offence in the case of a renter, and one year after the commission of the offence in the case of an exhibitor.

Provisions
as to
licences.

25.—(1) A licence under this Act shall be granted by the Board of Trade to any person applying for the licence if the applicant is not disqualified for holding the licence applied for, and if the application is accompanied by such information verified in such manner as the Board may reasonably require in order to satisfy themselves that the applicant is not disqualified for holding the licence applied for and by the prescribed fee.

(2) A person shall not be qualified to hold a licence under this Part of this Act unless he has a place of business within Great Britain and has sent notice

thereof and of any change therein to the Board of Trade.

(3) A licence granted under this section shall remain in force until the expiration of the year ending on the thirty-first day of March or the thirtieth day of September, as the case may be, in respect of which it is granted, unless previous to that date the holder thereof ceases to be qualified for holding the licence.

26.—(1) If any person required to make a return under this Part of this Act fails to make the return within the time within which he is required to make the return, or on being so required fails to give any information or explanation respecting the return which it is in his power to give, he shall be guilty of an offence, and shall be liable on summary conviction to a fine not exceeding five pounds for every day during which the default continues.

Penalties
for failure
to make
returns and
keep record
books.

(2) If any person who is required to keep a book and record therein such particulars as are mentioned in this Part of this Act fails to do so, or when required by a person authorised in that behalf by the Board of Trade to produce the book for inspection at any reasonable time fails to do so, he shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding twenty pounds.

PART IV.

GENERAL.

27.—(1) The films to which this Act applies are all cinematograph films other than—

Films to
which Act
applies.

- (a) films depicting wholly or mainly news and current events;
- (b) films depicting wholly or mainly natural scenery;
- (c) films being wholly or mainly commercial advertisements;
- (d) films used wholly or mainly by educational institutions for educational purposes;
- (e) films depicting wholly or mainly industrial or manufacturing processes;
- (f) scientific films, including natural history films.

Provided that—

- (i) if it appears to the Board of Trade, on application by the maker or renter, that, having regard to the special exhibition value of the film, any film of any such class as aforesaid should be allowed to be registered and to count for the purposes of the renters' quota and exhibitors' quota, they may allow the film to be registered and so counted; and
 - (ii) any film being a British film and a film of class (b), (d), (e) or (f) of the classes above mentioned shall without being trade shown be registrable as if it were a film to which this Act applies, and, if so registered, shall be deemed to be a registered film for the purposes of the provisions of this Act other than those relating to the renters' quota.
- (2) For the purposes of this Act, "serial film or series of films" means a serial film or series of films comprising a number of parts not exceeding twenty-six, each part not exceeding two thousand feet in length, intended to be exhibited at successive dates at intervals not exceeding fourteen days.
- (3) For the purposes of this Act, a film shall be deemed to be a British film if, but not unless, it complies with all the following requirements :—
- (i) It must have been made by a person who was at the time the film was made a British subject, or by two or more persons each of whom was a British subject, or by a British company;
 - (ii) After the thirty-first day of December, nineteen hundred and twenty-eight, the studio scenes must have been photographed in a studio in the British Empire;
 - (iii) The author of the scenario must have been a British subject at the time the film was made;
 - (iv) Not less than seventy-five per cent. of the salaries, wages and payments specifically paid for labour and services in the making of the film (exclusive of payments in respect of copy-right and of the salary or payments to one foreign actor or actress or producer, but inclusive of the payments to the author of the

scenario) has been paid to British subjects or persons domiciled in the British Empire, but it shall be lawful for the Board of Trade to relax this requirement in any case where they are satisfied that the maker had taken all reasonable steps to secure compliance with the requirement, and that his failure to comply therewith was occasioned by exceptional circumstances beyond his control, but so that such power of relaxation shall not permit of the percentage aforesaid being less than seventy per cent.

(4) Every film which is not a British film shall for the purposes of this Act be deemed to be a foreign film.

(5) For the purposes of this section—

The expression “British company” means a company constituted under the laws of any part of the British Empire, the majority of the directors of which are British subjects;

The expression “British Empire” includes territories under His Majesty’s protection and such (if any) of the territories in respect of which a mandate on behalf of the League of Nations has been accepted by His Majesty as His Majesty may from time to time by Order in Council direct shall be treated as if they were included in His Majesty’s dominions for the purposes of this Act.

28. If any person—

- (a) in connection with an application for registration of any film under this Act; or
- (b) for the purpose of obtaining a licence under this Act for himself or any other person; or
- (c) in or in connection with any return required by this Act, or in the record book kept in pursuance of this Act;

Penalties for
misrepresentation.

knowingly makes any statement or gives any information which is false in any material particular, he shall be guilty of an offence under this Act and shall be liable on summary conviction to imprisonment for a term not exceeding three months or to a fine not exceeding fifty pounds.

Power of
Board of
Trade to
make regu-
lations.

29.—(1) The Board of Trade may make regulations for prescribing anything which under this Act is to be prescribed, and generally for carrying this Act into effect, and in particular may, subject to the consent of the Treasury so far as they relate to fees, by regulations prescribe—

- (a) the particulars to be entered in the register ;
- (b) the form of applications for registration ;
- (c) the particulars and evidence necessary for establishing the British nature of a film ;
- (d) the fees to be paid on applications for registration, for inspections of the register, and for certified copies of the register ;
- (e) the form of the returns to be made, and of the records to be kept under this Act ;
- (f) the fees to be paid on applications for licences under this Act.

(2) Fees shall be so fixed, and from time to time if necessary be so readjusted, that the aggregate amount produced thereby as from the commencement of this Act up to any date would be approximately equal to the expenses incidental to the carrying out of this Act up to the same date ; and the fees payable on application for registration and for licences shall not exceed those specified in the Second Schedule to this Act.

(3) Regulations under paragraph (c) shall provide that the particulars required as to salaries, wages and payments shall be certified by an accountant being a member of an incorporated society of accountants.

Advisory
committee.

30.—(1) Until the expiration of the quota period, for the purpose of advising them on the administration of the provisions of this Act, the Board of Trade shall constitute an advisory committee consisting of—

- (a) two representatives of film makers ;
- (b) two representatives of film renters ;
- (c) four representatives of film exhibitors ;
- (d) five members, of whom one shall be chairman, and including a woman, being persons having no pecuniary interest in any branch of the film industry.

(2) The term of office of a person appointed to be a member of the advisory committee shall be such period not exceeding three years as may be fixed at the time of his appointment, but a retiring member shall be eligible for reappointment.

31.—(1) Proceedings for any offence under this Act may in England and Wales be instituted by or on behalf of the Board of Trade, but not otherwise. Institution
of proceed-
ings.

(2) Any process or notice required to be served on any person for the purposes of this Act shall, if that person is out of Great Britain but has a place of business within Great Britain, be sufficiently served if addressed to that person and left at or sent by post to such place of business as aforesaid.

32.—(1) For the purposes of this Act, unless the context otherwise requires,— Interpreta-
tion.

The expression “trade shown” in relation to a film means either—

(a) displayed within the administrative county of London to exhibitors of films or their agents in a building and under conditions allowing for the satisfactory viewing of the film after announcement to such persons at least seven days before the display, the display not being open to any member of the public on payment; or

(b) displayed to the general public in one theatre only on the first occasion on which the film is displayed in Great Britain either to exhibitors or to the public, and being the first of a series of public exhibitions of the film held on a number of consecutive days:

The expression “maker” in relation to any film means the person by whom the arrangements necessary for the production of the film are undertaken:

The expression “producer” in relation to any film means the person responsible for the organisation and direction of the scenes to be depicted on the film:

The expression “renting” in relation to films means renting or otherwise issuing films to exhibitors

at a rent or for other consideration, or making other arrangements with exhibitors for the exhibition thereof :

The expression “ acquire ” in relation to a renter includes the making or obtaining possession of films for the purpose of renting them :

The expression “ length ” in relation to a film means the total length of film as offered for projection at public exhibitions thereof :

The expression “ theatre ” includes any premises in respect of which a licence is required to be issued under the Cinematograph Act, 1909, or would be so required if the film were an inflammable film, except that it does not include—

9 Edw. 7.
c. 30.

(a) any church, chapel, or other place of religious worship, or any hall or other premises used in connection with and for the purposes of any such church, chapel, or place of religious worship unless the number of performances (exclusive of religious services) at any such church, chapel, place, or premises which consist of or comprise the exhibition of registered films exceed six in any year ending on the thirtieth day of September; or

(b) any premises performances at which consist partly of the exhibition of films, but so that at no one performance in any such year does the total length of the registered film or films exhibited exceed two thousand feet.

(2) Where compliance on the part of a renter or exhibitor with the provisions of this Act as to quota was not commercially practicable by reason of the character of the British films available or the excessive cost of such films, non-compliance with those provisions on that ground shall for the purposes of this Act be treated as due to reasons beyond his control.

(3) Anything required or authorised under this Act to be done by or to the Board of Trade may be done by or to the President or secretary or assistant secretary of the Board, or any person authorised in that behalf by the President of the Board.

33.—(1) This Act may be cited as the Cinematograph Films Act, 1927. Short title,
extent,
commence-
ment, and
duration.

(2) This Act shall not extend to Northern Ireland, and for the purposes of the Government of Ireland Act, 1920, the enactment of legislation for purposes similar to the purposes of this Act shall not be deemed to be beyond the powers of the Parliament of Northern Ireland by reason only that such legislation may affect trade with places outside Northern Ireland.

(3) This Act shall come into operation on the first day of January, nineteen hundred and twenty-eight.

(4) Part I. and Part II. of this Act shall continue in force until the thirtieth day of September, nineteen hundred and thirty-eight, and no longer.

10 & 11
Geo. 5. c. 67.

SCHEDULES.

FIRST SCHEDULE.

PART I.

RENTERS' QUOTA.

As respects the year ending 31st March 1929	-	7½ per cent.
„ „ „ 1930	-	10 „
„ „ „ 1931	-	10 „
„ „ „ 1932	-	12½ „
„ „ „ 1933	-	15 „
„ „ „ 1934	-	17½ „
„ „ „ 1935	-	17½ „
„ „ „ 1936	-	20 „
„ „ „ 1937	-	20 „
„ „ „ 1938	-	20 „

PART II.

EXHIBITORS' QUOTA.

As respects the year ending 30th September 1929	5	per cent.
„ „ „ 1930	7½	„
„ „ „ 1931	7½	„
„ „ „ 1932	10	„
„ „ „ 1933	12½	„
„ „ „ 1934	15	„
„ „ „ 1935	15	„
„ „ „ 1936	20	„
„ „ „ 1937	20	„
„ „ „ 1938	20	„



Sections 13
and 19.

Section 29.

SECOND SCHEDULE.

MAXIMUM FEES.

	Maximum Fee.	
	£	s.
On an application for the registration of a film -	1	1
On an application for a renter's licence -	5	5
On an application for an exhibitor's licence -	1	1
for each theatre in respect of which a licence is applied for.		

CHAPTER 30.

An Act to amend the Unemployment Insurance Acts, 1920 to 1926. [22nd December 1927.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Rights of
insured
persons to
benefit.

1. An insured contributor who is unemployed shall, if he proves that the statutory conditions are fulfilled in his case and if he is not disqualified under the Unemployment Insurance Acts for the receipt of benefit, be entitled, subject to the provisions of those Acts, to receive benefit.

Rates of
contribution
in case of
young men
and young
women.

2.—(1) The following provisions shall have effect with respect to the contributions payable under the Unemployment Insurance Acts in respect of employed persons who have attained the age of eighteen years but have not attained the age of twenty-one years (in this Act referred to as "young men and young women"):

(a) As from and after the second day of July, nineteen hundred and twenty-eight, until the expiration of the extended period the contributions payable as aforesaid by young men and young women and their employers shall be at the respective rates set out in the First Schedule to this Act: